

24STCV11590 24STCV11590

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Case Number: 24STCV11590 Hearing Date: July 17, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Petitions of

Petitioner Daniel Onofre for Approval of Compromise of Claim of Minors Angie

Delilah Onofre, Daniel Onofre Jr., and Zachary Isaiah Marquez

Petitioner's Petitions for Minor's Compromise are granted.

BACKGROUND

Plaintiffs Daniel Onofre, Maria Mazariegos Marquez, Daniel Onofre Jr., Angie Delilah Onofre, and Zachary Isaiah Marquez (collectively, "Plaintiffs"), tenants of an apartment building, filed this action against Salvador Munoz and Ana M. Hernandez, as trustee of the Ana Maria Hernandez Trust (collectively, "Defendants").

The causes of action are: (1) breach of the implied warranty of habitability; (2) breach of the statutory warranty of habitability; (3) breach of the covenant of quiet enjoyment; (4) negligence; (5) violation of Civil Code section 1942.4; (6) private nuisance; (7) violation of the City of Los Angeles Tenant Anti-Harassment Ordinance; and (8) violation of the Unfair Competition Law.

Three of the Plaintiffs are minors: Angie Delilah Onofre, Daniel Onofre Jr., and Zachary Isaiah Marquez (collectively, "Minors"). Each Minor appears through a guardian ad litem, Daniel Onofre (Petitioner). The parties settled the action for a global sum of \$375,000, allocated among the five Plaintiffs. As guardian ad litem, Petitioner filed three substantively identical petitions requesting the Court's approval of the compromise of each Minor's claim.

LEGAL STANDARD

Courts must decide whether to approve a compromise by determining whether petitioners, such as guardians, are acting in the best interests of minors. (See Code Civ. Proc., § 372, subd. (a); *Scruton v. Korean Air Lines Co.* (1995) 39 Cal.App.4th 1596, 1603-1607.) “[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor’s best interests.... [I]ts primary concern is whether the compromise is sufficient to provide for the minor’s injuries, care and treatment.” (*Goldberg v. Superior Court* (1994) 23 Cal.App.4th 1378, 1382.) Judicial discretion in approving petitions for minors’ compromises, and in ordering distributions, must be exercised in the best interests of minors, on a case-by-case basis tailored to the circumstances. (*Christensen v. Superior Court* (1987) 193 Cal.App.3d 139, 142-144.)

A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court, rules 7.950, 7.951, and 7.952. (See Cal. Rules of Court, rule 3.1384(a).) Provisions of the Probate Code and the Code of Civil Procedure apply to compromises of minors’ claims. (See Cal. Rules of Court, rule 7.950.)

Payment of attorney’s fees on a minor’s behalf must be approved as reasonable by the court. (*Niles v. City of San Rafael* (1974) 42 Cal.App.3d 230, 244.) “The trial court itself must develop and resolve any counterarguments on behalf of the minor, lest the attorney receive an excessive award of fees.” (*Gonzalez v. Chen* (2011) 197 Cal.App.4th 881, 887.)

Unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard in approving attorney’s fees payable from money paid or to be paid for the benefit of a minor. (Cal. Rules of Court, rule 7.955(a)(1).)

The court must consider the terms of the agreement between the attorney and the minor’s representative and evaluate the agreement based on the facts and circumstances existing when the agreement was made. (Cal. Rules of Court, rule 7.955(a)(2).) Rule 7.955(b) sets out nonexclusive factors bearing on the reasonableness of the fee, and the petition must include a declaration from the attorney addressing the applicable factors. (Cal. Rules of Court, rule 7.955(c).)

ANALYSIS

I. Settlement

In seeking approval of the settlement, Petitioner represents that he made a careful and diligent inquiry and investigation into the facts and circumstances of the incident, the responsibility for it, and the nature and extent of each Minor's injuries. (Petitions ¶ 9.) The Minors resided with their family in one unit of an apartment building that suffered from uninhabitable conditions, including rodent, cockroach, and bedbug infestations. Each Minor's claim is for bodily injury alone, consisting of insect bites and allergy symptoms treated with over-the-counter medication, from which each Minor has fully recovered without treatment by a physician. (Petitions ¶¶ 5-8 & Attach. 13a.)

Each Minor is to receive a gross recovery of \$20,000. The Court finds that this amount is fair, reasonable, and in each Minor's best interest, and is consistent with amounts this Court has approved in comparable cases involving minors who lived in uninhabitable conditions, fully recovered, and required no medical treatment. Accordingly, the Court approves the compromise of each Minor's claim.

II. Disposition of Funds

The net balance available to each Minor after costs and attorney fees is \$14,722.73. Probate Code section 3611, subdivision (b), authorizes the Court to order that the remaining balance of a minor's settlement be deposited in an insured account in a financial institution in this state, subject to withdrawal only upon the authorization of the court. (See also Cal. Rules of Court, rule 7.953.) Petitioner requests that each Minor's net recovery be deposited in a blocked account at JP Morgan Chase Bank, subject to withdrawal only on order of the Court, until the Minor reaches the age of majority. The Court finds this disposition to be in each Minor's best interest and approves it.

III. Attorney's Fees

Counsel requests attorney's fees of \$4,907.57 for each Minor, representing twenty-five percent of the Minor's recovery after deduction of costs, under a written contingency fee agreement. (Attach. 17a.) The petitions include the declaration of counsel required by California Rules of Court, rule 7.955(c). (Attach. 13a.) The declaration addresses the applicable

factors under rule 7.955(b): the nature of each Minor's injuries; the time and labor involved, estimated at twenty-five hours per Minor; counsel's experience and reputation in habitability litigation; the contingent nature of the representation and the risk of no recovery; counsel's advancement of costs; and the informed consent of the guardian ad litem to the fee. The requested fee equals approximately \$196 per hour. The Court finds the requested fee reasonable. Accordingly, the Court approves attorney's fees of \$4,907.57 and costs of \$369.70 as to each Minor.

CONCLUSION

The Petitions are granted. The Court approves the compromise of each Minor's claim in the gross amount of \$20,000, approves attorney's fees of \$4,907.57 and costs of \$369.70 as to each Minor, and orders that the net balance of \$14,722.73 for each Minor be deposited in a blocked account subject to withdrawal only upon further order of the Court.